City of Mountain View

# COUNCIL REPORT

**DATE:** June 9, 2026

**CATEGORY:** New Business

**DEPT.:** City Attorney's Office

**TITLE:** **Charter Modernization – 2026 Ballot Measure**

## RECOMMENDATION

Adopt a Resolution of the City Council of the City of Mountain View: (1) Calling a General Municipal Election and Ordering Consolidation with the Statewide General Election for the Purpose of Submitting to the Voters a Ballot Measure to Amend the City Charter to Modernize and Clarify its Provisions; (2) Authorizing Members of the Council to Author an Argument for the Ballot Measure; (3) Directing the City Attorney to Prepare an Impartial Analysis; and (4) Authorizing the City Clerk to Contract with the County of Santa Clara for Services to be Performed in Connection with the General Municipal Election to be Held on Tuesday, November 3, 2026, to be read in title only, further reading waived.

## BACKGROUND

The City Council's 2025–27 Work Plan includes a project to place a measure on the 2026 ballot proposing amendments to the City Charter to modernize its provisions. The amendments contemplated for the 2026 ballot are intended to be noncontroversial in nature and limited to technical and clarifying changes, including correcting typographical errors, clarifying existing language, revising outdated terminology, improving internal consistency, and aligning the Charter with state law and current operational practices. More substantive policy-level Charter amendments may be considered as part of a separate ballot measure in 2028.

At its February 10, 2026, study session, the City Council considered several potential Charter amendments. In developing the proposed amendments, the City Attorney's Office conferred with the City Manager and City Clerk and conducted a peer-city benchmarking review of the charters of San Francisco, San Jose, Sacramento, Oakland, Los Angeles, Palo Alto, Redwood City, Sunnyvale, and Santa Clara to identify best practices for modernization and technical Charter amendments. The review included larger cities that regularly update their charters and therefore often reflect more current drafting standards, as well as neighboring jurisdictions, to help ensure that the proposed amendments are consistent with contemporary municipal practices. While the charters reviewed varied significantly in structure, organization, and substantive requirements

and did not contain identical language or provisions, the review provided a useful framework for evaluating modern drafting approaches and commonly used governance provisions.

Following discussion at the Study Session, the Council supported amendments to correct typographical errors throughout the Charter; replace gender-specific terminology with gender-neutral language; clarify the reference to "qualified elector" in Section 501 to align with state law; extend the period to fill a City Council vacancy from 30 to 60 days; remove the requirement in Section 514 that ordinances and resolutions, or their titles, be read prior to adoption; revise Section 515 to require a roll-call vote on ordinances only when requested by a Councilmember or otherwise required by law; update Section 709 to remove outdated references to maintaining "books" and instead refer generally to City records; and clarify the staggered-term requirements for boards, commissions, and committees in Section 902.

The Council also supported retaining residency and elector requirements for Charter-created boards and commissions unless otherwise provided in the Charter, while authorizing the City Council to establish membership qualifications for boards, commissions, and committees created by ordinance. The Council further supported corresponding clarifying and conforming amendments to Charter Sections 904, 905, 906, 909, and 911.

With respect to Charter Section 1702, the Council directed staff to consult with the Rental Housing Committee regarding a proposed amendment to the Community Stabilization and Fair Rent Act (CSFRA) to update references to Municipal Code provisions. Staff presented the proposed amendment to the Committee on February 26, 2026, and the Committee unanimously supported the proposed changes.

Based on the Council's direction, staff has prepared the proposed Charter amendment measure and associated ballot materials for Council consideration. The accompanying resolution would call and give notice of the election, submit the proposed Charter amendments to the voters at the November 3, 2026, General Municipal Election, and take related actions necessary to place the measure on the ballot. The proposed Charter amendments are presented in Exhibit A to Attachment 1 in underline and strikethrough format, showing the Council-supported revisions to the Charter.

## FISCAL IMPACT

Placing this measure on the ballot for voter approval will cost the City approximately $100,000.

## LEVINE ACT

California Government Code Section 84308 (also known as the Levine Act) prohibits city officials from participating in any proceeding involving a "license, permit, or other entitlement for use" if the official has received a campaign contribution exceeding $500 from a party, participant, or

agent of a party or participant within the last 12 months. The Levine Act is intended to prevent financial influence on decisions that affect specific, identifiable persons or participants. For more information see the Fair Political Practices Commission website: www.fppc.ca.gov/learn/pay-to-play-limits-and-prohibitions.html

Please see below for information about whether the recommended action for this agenda item is subject to or exempt from the Levine Act.

**EXEMPT FROM THE LEVINE ACT**
☒ General policy and legislative actions

**ALTERNATIVES**

1. Do not approve the submission of the ballot measure to the voters.

**PUBLIC NOTICING**

Agenda posting.

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Attachment: 1. Resolution